

1.

| CASE #      | CASE NAME              | HEARING NAME |
|-------------|------------------------|--------------|
| CVME2404230 | MERCURY INS. V. MORRIS | TSC          |

**Tentative Ruling:** Send to Court Mediation with a 2/26/27 Mediation Completion date.

2.

| CASE #      | CASE NAME                                                                     | HEARING NAME                                |
|-------------|-------------------------------------------------------------------------------|---------------------------------------------|
| CVME2407094 | PEOPLE OF THE STATE OF CALIFORNIA, EX REL. TIFFANY J. ISRAEL VS CHOULAMOUNTRY | MOTION FOR FINAL ACCOUNTING BY THE RECEIVER |

**Tentative Ruling:** Hearing required.

3.

| CASE #      | CASE NAME                     | HEARING NAME |
|-------------|-------------------------------|--------------|
| CVME2505406 | CA AUTO INS V. PERFECT CIRCLE | TSC          |

**Tentative Ruling:** A 5-day court trial is scheduled for June 4, 2027. The parties are granted five (5) days to post jury fees; failure to do so will be deemed a waiver of the right to a jury trial. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court's website. All experts shall be scheduled to be deposed no later than 20 days prior to the first day of trial. A Zoom MSC will be set by the Court—once set, the Court will provide notice.

4.

| CASE #      | CASE NAME    | HEARING NAME                                                             |
|-------------|--------------|--------------------------------------------------------------------------|
| CVME2505725 | LIST VS LIST | DEMURRER, MOTION TO STRIKE ON 1 <sup>ST</sup> AMENDED COMPLAINT, AND CMC |

**Tentative Ruling:** Overrule the Demurrer and Deny the Motion to Strike as procedurally deficient.

CCP §§ 430.41 and 435.5 require a meet and confer process *via phone, videoconferencing, or in person at least five (5) days* before filing a demurrer or motion to strike. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff must provide legal support for its position. (Code Civ. Proc., §§ 430.41(a)(1), 435.5(a)(1).)

Plaintiff's counsel argues that the motions are untimely and that defense counsel failed to adequately meet and confer. The parties are divided on the procedural timeline. Defense counsel declares that the parties have been engaging in email and telephone discussions regarding the *initial* complaint since September 2025. (Greenman Decl., ¶ 3.) As to the FAC, defense counsel declares that he sent a meet-and-confer letter on 5/14/26 and placed a telephone call and left a voicemail for Plaintiff's counsel on the same day. (Greenman Decl., ¶¶ 18-21.)

Plaintiff's counsel responded that Plaintiff would not amend the FAC. (*Id.*, ¶ 19.) In opposition, Plaintiff's counsel contends that the letter was sent on 5/14/26 was "only three (3) days before" the filings on 5/18/26, violating the statutory 5-day window. (Frenzel Decl., ¶ 9). Because the 5-day requirement was not met, Defendant failed to satisfy his statutory obligation to meet and confer in accordance with CCP §§ 430.41(a) and 435.5(a).

On 7/15/26, the Court continued the matter to permit Defendant's counsel to file a declaration demonstrating full compliance with the meet-and-confer requirements. As of 8/12/25, Defendant has failed to comply with the Court's order. Accordingly, the Court overrules the demurrer and denies the motion to strike.

**On the merits:** While Defendant demurs on the grounds of uncertainty, Defendant fails to explain how any of the allegations are uncertain such that Defendant cannot reasonably determine what issues must be admitted or denied, or what claims are directed against them. (*Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616.)

**4th Cause of Action (Fraud):** Defendant argues that because he was not appointed trustee until December 2022, he owed no fiduciary duty of disclosure to Plaintiff before that. However, the FAC alleges that there was a prior litigation in 2019 concerning the original trust's "specific gift" language about the Residence as it was "contradicting in nature" (FAC ¶¶ 12-14). During that time, Defendant "appeared, participated, and raised no objection" to the court's 1/14/20 ruling and interpretation of the trust, which "expressly determin[ed] that ERIKA holds a vested life estate" (*Id.*, ¶ 14). As pled, Defendant was an active party to that judicial proceeding held to interpret the original trust, but he concealed a competing trust amendment. That purported amendment seeks to invalidate the very "Specific Gift" section being litigated (*Id.*, Exh. D). If the parties have "some sort of transaction" between them, and "one party to [such] transaction has sole knowledge or access to material facts and knows that such facts are not known to ... the other party," then a duty to disclose arises. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 337.) The FAC alleges that "[a]t no time during the Contested Litigation did Defendant disclose the existence of any trust amendment purporting to alter ownership of the RESIDENCE." (FAC ¶ 20.) "JASON's silence constituted intentional concealment of a material fact within his exclusive knowledge, undertaken to secure a favorable ruling and delay ERIKA's enforcement of her rights." (*Id.*) Defendant suppressed the Purported Amendment for over 6 years. (FAC ¶ 19.) Taken as true, these are sufficient to allege a duty to disclose.

Defendant was also appointed as the successor trustee on 12/14/22 (FAC ¶ 16.) The FAC alleges that even after his appointment, Defendant continued to suppress the purported amendment, "interfered with and/or prevented ERIKA from accessing the mortgage account and making payments" by holding himself out as the authorized trustee (*Id.*, ¶ 17), and "transferred the RESIDENCE to himself" on 1/8/25 "without notice to ERIKA" (*Id.*, ¶ 18). These are sufficient.

Next, Defendant argues that Plaintiff's allegations of reliance and non-speculative damages are insufficient. Here, the FAC pleads that Plaintiff relied on the absence of that purported amendment (and also the court's 2020 determination of her life estate) by continuing to reside in the residence, maintaining it, and paying property taxes and mortgage escrow payments through February 2024. (FAC ¶¶ 30-31). The FAC also alleges that had Plaintiff known of the amendment, she "would have acted differently, including but not limited to: (a) promptly petitioning for cancellation and related injunctive relief before JASON recorded the Self-Dealing Deed; (b) investigating the genesis and validity of the Purported Amendment and obtained

evidence to contest its validity; and taking immediate steps to prevent further clouding of title and interference with ERIKA's vested life estate.” (*Id.*, ¶ 58.) It further alleges that “[a]s a result of JASON's concealment, ERIKA incurred damages including... attorneys' fees and costs to investigate and litigate issues that could have been addressed earlier, title-related expenses, and harm arising from interference with ERIKA's possessory life estate and ERIKA's ability to protect the RESIDENCE.” (*Id.*, ¶ 59.) These allegations are sufficient to allege reliance and damages.

**5th (Undue Influence) and 7th (Financial Elder Abuse) Causes of Action:** Defendant argues that the FAC fails to allege that Defendant “took, hid, appropriated, or obtained property” from Decedent, because the FAC alleges that the residence remained as Trust property during Decedent's lifetime and until 2025.

The FAC alleges that Decedent was 73 years old when the purported amendment was executed on 2/8/18 (FAC, ¶¶ 25, 81), making her an “elder.” (Welf. & Inst. Code, § 15610.27.) This is undisputed. The FAC alleges that Defendant “took, secreted, appropriated, and/or retained Decedent's real property rights in the residence for a wrongful use... by procuring the Purported Amendment while Decedent was vulnerable and ill and by later withholding and concealing the Purported Amendment for years in order to deprive Decedent's intended beneficiaries of their rights and to enable Defendant's self-dealing transfer of the RESIDENCE.” (*Id.*, ¶ 83.) In her opposition, Plaintiff argues that Decedent lost her testamentary freedom and right to dispose of her property according to her true wishes (free will). Though these facts are minimal, this is sufficient.

Defendant also argues that Plaintiff lacks standing to sue under the 5th (undue influence) and the 7th causes of action (elder financial abuse). Defendant relies on *Tepper v. Wilkins* (2017) 10 Cal.App.5th 1198, 1206, and *Steinhart v. County of Los Angeles* (2010) 47 Cal.4th 1298, 1319, to assert that a settlor of a revocable trust retains full ownership and control over any property transferred to the trust, and that beneficiaries of a revocable trust have no vested rights in the trust property. However, Defendant's reliance is misplaced. While Plaintiff's interest was revocable during the settlor's (Decedent's) lifetime, the revocable trust became irrevocable immediately upon Decedent's death. (*Estate of Giralдин* (2012) 55 Cal.4th 1058, 1062, [“When the settlor dies, the trust becomes irrevocable, and the beneficiaries' interest in the trust vests.”]) Decedent passed away on 7/7/18. (FAC ¶ 7.) Plaintiff's interest vested on upon Decedent's death on that day, under the original terms of the trust (*Id.*, ¶ 34). (*Estate of Giralдин* (2012) 55 Cal.4th 1058, 1062.) Notably, the Court also held in 2020 that Plaintiff holds a vested life estate in the residence.

Defendant further argues that Plaintiff's elder abuse claim fails because she did not file an affidavit or a declaration as the decedent's successor in interest. (CCP § 377.32.)

An elder abuse cause of action is based on injury/damages to the elder, not to the elder's heirs. Welfare and Institutions Code section 15657.3 (c) states that: The death of the elder or dependent adult does not cause the court to lose jurisdiction of a claim for relief for abuse of that elder or dependent adult.

If the elder dies, the right to commence an action “shall pass to the personal representative of the decedent.” (Welf. & Inst. Code, §15657.3(d).) If there is no personal representative, an affidavit or declaration under C.C.P. §377.32 must be filed and one of the individuals provided for under

Welfare & Institutions Code §15657.3(d)(1)(A) through (C) can commence the lawsuit. If there is a personal representative, but the elder abuse claims are asserted against them, a claim can be brought by an intestate heir, a decedent's successor in interest, or an interested person. (Welf. & Inst. Code, §15657.3(d)(2).) However, it appears that this individual (intestate heir, successor in interest, or interested person) would still be required to comply with C.C.P. §377.32. (Welf. & Inst. Code, §1567.3(d)(1).) Here, Plaintiff alleges that she is an interested person. However, she has not filed a declaration under C.C.P. §377.32. As such, absent the procedural issues, the court would have sustained the demurrer to these causes of action with leave to amend for plaintiff to file the declaration.

5.

| CASE #      | CASE NAME                | HEARING NAME |
|-------------|--------------------------|--------------|
| CVME2507338 | CARMAN V. WESTERN STATES | CMC AND OSC  |

**Tentative Ruling:** Strike the complaint if Plaintiff fails to appear.

6.

| CASE #      | CASE NAME       | HEARING NAME |
|-------------|-----------------|--------------|
| CVME2508179 | RAMIREZ V. LAZO | TSC          |

**Tentative Ruling:** A 7-day court trial is scheduled for June 4, 2027. All parties must strictly comply with Local Rule 3401 and should familiarize themselves with *Reales Investment v. Johnson* (2020) 55 Cal.App.5th 463. Failure to comply with Local Rule 3401 may result in the imposition of evidentiary sanctions. The parties are directed to download, review, and follow the trial binder preparation pamphlet available on the court's website. All experts shall be scheduled to be deposed no later than 20 days prior to the first day of trial. A Zoom MSC will be set by the Court—once set, the Court will provide notice.

7.

| CASE #      | CASE NAME                | HEARING NAME |
|-------------|--------------------------|--------------|
| CVME2508935 | VILLA DE AMORE V. NEW AV | CMC          |

**Tentative Ruling:** Continue to September 30, 2026 and set an OSC on the same day for failure to request a default if the defendant fails to file a responsive pleading, with sanctions not to exceed \$1,500 and/or striking the pleading.